

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LAHONTAN REGION

BOARD ORDER NO. 6-95-21
WDID NO. 6A020013000

UPDATED WASTE DISCHARGE REQUIREMENTS

FOR

WOODFORDS INDIAN COLONY
WASTEWATER TREATMENT AND DISPOSAL FACILITY

Alpine County

The California Regional Water Quality Control Board, Lahontan Region (Regional Board) finds:

1. Dischargers

The U.S. Department of Health and Human Services submitted a complete report of waste discharge for the Woodfords Indian Colony Wastewater Treatment and Disposal Facility on March 14, 1988. The Department of Health and Human Services more recently submitted additional information on December 7, 1994 regarding changes to the Facility since 1988. For the purposes of this Order, The Washoe Tribe of Nevada and California and the U.S. Bureau of Land Management are referred to as the "Dischargers."

2. Facility

The Woodfords Indian Colony Wastewater Treatment and Disposal Facility is the facility from which the discharge occurs. For the purposes of this Order, the Woodfords Indian Colony Wastewater Treatment and Disposal Facility is referred to as the "Facility".

3. History of Previous Regulation by the Regional Board

The Regional Board previously established waste discharge requirements for the Facility under Board Order No. 6-74-17, which was adopted on February 28, 1974, and Board Order No. 6-88-85, which was adopted on June 6, 1988.

4. Reason for Action

The Regional Board is updating waste discharge requirements for the Facility as part of a statewide program to periodically review and update waste discharge requirements. The purpose of this Order is to incorporate changes in regulations and regulatory policies and update the requirements to reflect changes to the Facility.

5. Facility Location

The Facility is located five miles northeast of the town of Woodfords in Alpine County, just off Diamond Valley Road in the western 1/2 of Section 21, T.11N., R.20E., MDB&M, as shown on Attachment "A", which is made part of this Order.

6. Description of Facility and Discharge

The Facility presently serves 62 homes, a community building, and a fire station. Sewage from the collection system is treated and disposed of in a series of three lined evaporation ponds. The current maximum estimated wastewater flow to the treatment system is 15,100 gallons per day. Currently, the Facility bases wastewater flow on the water consumption rate for the community. No community growth is anticipated. Each of the three pond liners consist of 12 inches of compacted native material, overlain by 6 inches of surficial clay soil, covered by 12 inches of rock rip rap. To minimize percolation, the pond liners were designed for a maximum permeability of 1×10^{-7} cm/sec.

7. Sludge Treatment and Disposal

A low volume of sludge remains in each pond after evaporation. Due to the relatively large size of the ponds and the low volume of wastewater influent, there is no need to remove the sludge for approximately 20 years.

8. Treatment and Disposal Area

The three pond retention system is designed to operate in series. Raw sewage from the community gravity flows from the collection system to the first pond which works as primary treatment. The first pond, when full, overflows into the second pond which further treats the wastewater. Then the second pond, when full, overflows into the third pond which acts as final treatment for the wastewater that reaches it.

9. Authorized Disposal Site

The three evaporation ponds are the only authorized disposal sites for wastewater.

10. Site Geology

The site is located on the west slope of a small valley within the Carson Range Mountains. The western half of the site slopes from the west to the east at a 5 to 10 percent gradient. The eastern half of the site is relatively flat. The total elevation relief across the site is 30 feet. Sagebrush and Pinion Pines are the primary vegetation. The geotechnical profile of the site consists of two stratas. The uppermost strata consists of overburden sandy clays. The lower strata is andesitic bedrock. The three evaporation ponds were underlain by highly permeable decomposed andesite on top of fractured andesite and basalt, but are now lined with compacted native soil and imported clay for a maximum permeability of 1×10^{-7} cm/sec.

11. Site Hydrology

Surface runoff from the Facility site enters a seasonal drainage course and flows northward approximately 2 1/2 miles before entering the West Fork of the Carson River.

12. Site Hydrogeology

The ground water is of a high quality. Samples taken in the summer of 1994 showed an electrical conductivity between 487 and 1052 umhos/cm. Nitrate and chloride levels were low. The ground water level at the three monitoring wells near the ponds was 17 to 34 feet below the natural ground elevation.

13. Receiving Waters

The receiving waters are the ground waters of the West Fork Carson River Hydrologic Unit (Department of Water Resources Hydrologic Unit No. 633.10). In case of an accidental discharge, flows could reach an ephemeral drainageway adjacent to the evaporation ponds. This drainage way is tributary to the West Fork Carson River.

14. North Lahontan Basin Plan

The Regional Board adopted a Water Quality Control Plan for the North Lahontan Basin (Basin Plan) on June 26, 1975 and this Order implements the Basin Plan, as amended.

15. Beneficial Uses of Ground Water

The beneficial uses of the ground waters of the North Lahontan Hydrologic Basin, West Fork Carson River Hydrologic Unit, Woodfords Hydrologic Subunit as set forth and defined in the Basin Plan are:

- a. municipal and domestic supply
- b. agricultural supply
- c. freshwater replenishment

16. Beneficial Uses of Surface Water

The beneficial uses of the surface waters of the North Lahontan Hydrologic Basin, West Fork Carson River Hydrologic Unit, Woodfords Hydrologic Subunit as set forth and defined in the Basin Plan are:

- a. municipal and domestic supply
- b. agricultural supply
- c. ground water recharge
- d. water-contact recreation
- e. non-water-contact recreation
- f. cold freshwater habitat
- g. wildlife habitat

17. California Environmental Quality Act Compliance

These waste discharge requirements govern an existing Facility which the Dischargers are currently operating. The project consists only of the continued operation of the Facility and is therefore exempt from the provisions of the California Environmental Quality Act (Public Resources Code, Section 21000 et seq.) in accordance with Section 15301, Chapter 3, Title 14 of the California Code of Regulations

18. Notification of Interested Parties

The Regional Board has notified the Dischargers and interested parties of its intent to update waste discharge requirements for the discharge.

19. Consideration of Public Comments

The Regional Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that the Dischargers shall comply with the following:

I. DISCHARGE SPECIFICATIONS

A. Discharge/Effluent Limitations

The 30 day average daily flow of wastewater to the treatment and disposal facilities shall not exceed 0.018 million gallons.

B. Receiving Water Limitations

The discharge of waste shall not cause the presence of the following substances or conditions in ground waters of the West Fork Carson River Hydrologic Unit:

1. Any perceptible color, odor, taste or foaming.
2. Coliform organisms attributable to human wastes.
3. Toxic substances in concentrations that individually, collectively, or cumulatively cause detrimental physiological responses in human, plants, animals, or aquatic life.
4. Identifiable chlorinated hydrocarbons, organophosphates, carbamates, and other pesticides and herbicide groups, in summations, in excess of the lowest detectable levels.

5. Concentrations of chemical constituents in excess of the maximum contaminant levels or secondary maximum contaminant levels based upon drinking water standards specified by the more restrictive of the California Code of Regulations, Title 22, Division 4, Chapter 15, or 40 CFR, Part 141.

C. General Requirements and Prohibitions

1. There shall be no discharge, bypass, or diversion of raw or partially treated sewage, sewage sludge, grease, or oils from the collection, transport, treatment, or disposal facilities to adjacent land areas or surface waters.
2. Surface flow or visible discharge of sewage or sewage effluent at, or from, the authorized disposal site to adjacent land areas or surface waters is prohibited.
3. The vertical distance between the liquid surface elevation and the lowest point of a pond dike or the invert of an overflow structure shall not be less than two (2) feet.
4. The discharge shall not cause a pollution as defined in Section 13050 of the California Water Code, or a threatened pollution.
5. Neither the treatment nor the discharge shall cause a nuisance as defined in Section 13050 of the California Water Code.
6. The discharge of wastewater except to the authorized disposal site is prohibited.
7. The integrity of any pond liners shall be maintained throughout the life of the ponds and shall not be diminished as the result of any maintenance or cleaning operation.

II. PROVISIONS

A. Rescission of Waste Discharge Requirements

Board Order No. 6-88-85 is hereby rescinded.

B. Standard Provisions

The Dischargers shall comply with the "Standard Provisions for Waste Discharge Requirements," dated September 1, 1994, in Attachment "B", which is made part of this Order.

C. Monitoring and Reporting

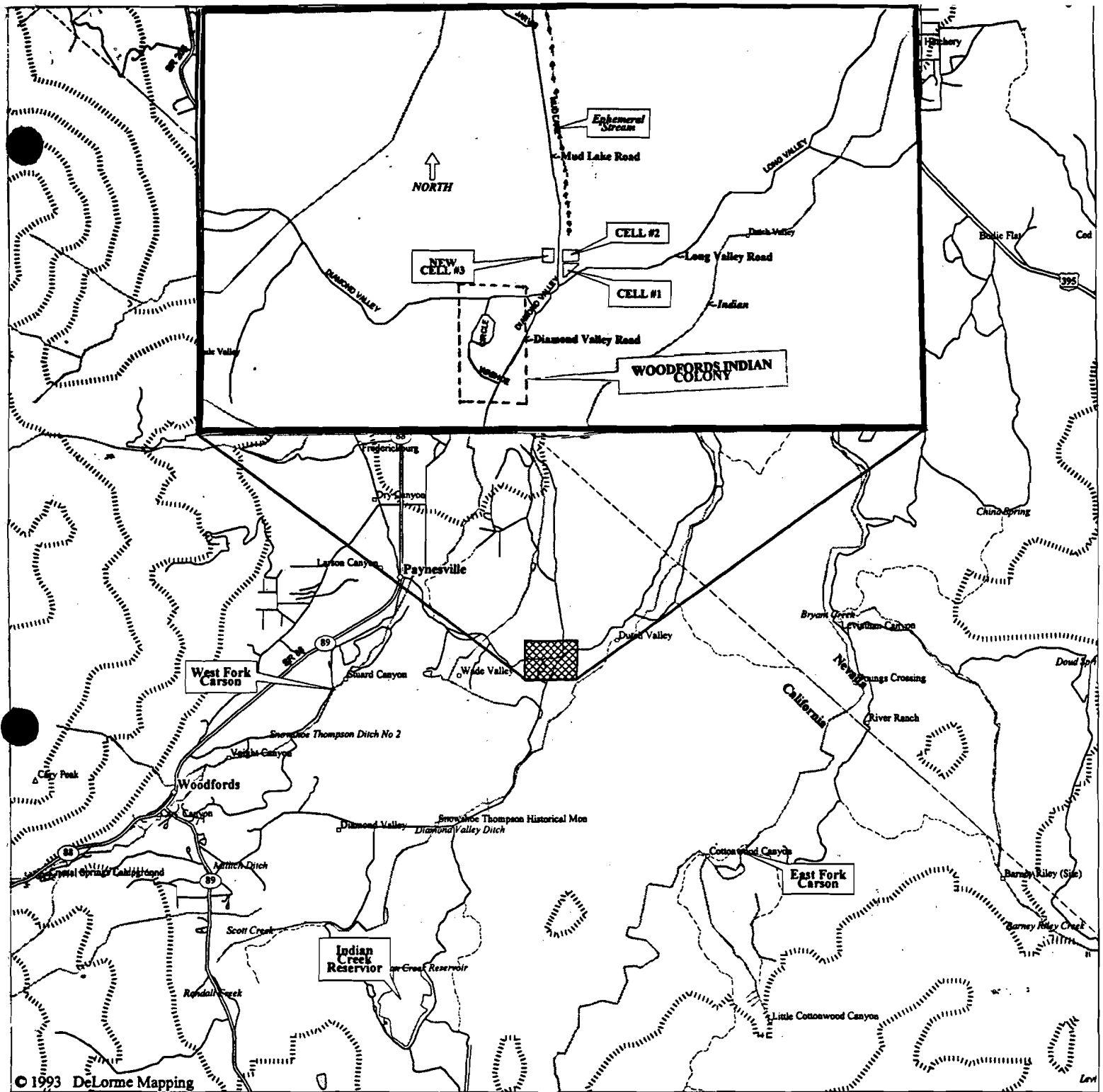
1. Pursuant to Section 13267(b) of the California Water Code, the Dischargers shall comply with the Monitoring and Reporting Program No. 95-21 as specified by the Executive Officer.
2. The Dischargers shall comply with the "General Provisions for Monitoring and Reporting," dated September 1, 1994, which is attached to and made part of the Monitoring and Reporting Program.

I, Harold J. Singer, Executive Officer, do hereby certify that the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Lahontan Region, on February 9, 1995.



HAROLD J. SINGER
EXECUTIVE OFFICER

Attachments: A. Location Map
B. Standard Provisions for Waste Discharge Requirements



Attachment "B"

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LAHONTAN REGION

STANDARD PROVISIONS
FOR WASTE DISCHARGE REQUIREMENTS

1. Inspection and Entry

The discharger shall permit Regional Board staff:

- a. to enter upon premises in which an effluent source is located or in which any required records are kept;
- b. to copy any records relating to the discharge or relating to compliance with the waste discharge requirements;
- c. to inspect monitoring equipment or records; and
- d. to sample any discharge.

2. Reporting Requirements

- a. Pursuant to California Water Code 13267(b), the discharger shall immediately notify the Regional Board by telephone whenever an adverse condition occurred as a result of this discharge; written confirmation shall follow within two weeks. An adverse condition includes, but is not limited to, spills of petroleum products or toxic chemicals, or damage to control facilities that could affect compliance.
- b. Pursuant to California Water Code Section 13260 (c), any proposed material change in the character of the waste, manner or method of treatment or disposal, increase of discharge, or location of discharge, shall be reported to the Regional Board at least 120 days in advance of implementation of any such proposal. This shall include, but not be limited to, all significant soil disturbances.
- c. The owner(s) of, and discharger upon, property subject to waste discharge requirements shall be considered to have a continuing responsibility for ensuring compliance with applicable waste discharge requirements in the operations or use of the owned property. Pursuant to California Water Code Section 13260(c), any change in the ownership and/or operation of property subject to the waste discharge requirements shall be reported to the Regional Board. Notification of applicable waste discharge requirements shall be furnished in writing to the new owners and/or operators and a copy of such notification shall be sent to the Regional Board.
- d. If a discharger becomes aware that any information submitted to the Regional Board is incorrect, the discharger shall immediately notify the Regional Board, in writing, and correct that information.

- e. Reports required by the waste discharge requirements, and other information requested by the Regional Board, must be signed by a duly authorized representative of the discharger. Under Section 13268 of the California Water Code, any person failing or refusing to furnish technical or monitoring reports, or falsifying any information provided therein, is guilty of a misdemeanor and may be liable civilly in an amount of up to one thousand dollars (\$1000) for each day of violation.
- f. If the discharger becomes aware that their waste discharge requirements are no longer needed (because the project will not be built or the discharge will cease) the discharger shall notify the Regional Board in writing and request that their waste discharge requirements be rescinded.

3. Right to Revise Waste Discharge Requirements

The Board reserves the privilege of changing all or any portion of the waste discharge requirements upon legal notice to and after opportunity to be heard is given to all concerned parties.

4. Duty to Comply

Failure to comply with the waste discharge requirements may constitute a violation of the California Water Code and is grounds for enforcement action or for permit termination, revocation and reissuance, or modification.

5. Duty to Mitigate

The discharger shall take all reasonable steps to minimize or prevent any discharge in violation of the waste discharge requirements which has a reasonable likelihood of adversely affecting human health or the environment.

6. Proper Operation and Maintenance

The discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) that are installed or used by the discharger to achieve compliance with the waste discharge requirements. Proper operation and maintenance includes adequate laboratory control, where appropriate, and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by the discharger, when necessary to achieve compliance with the conditions of the waste discharge requirements.

7. Waste Discharge Requirement Actions

The waste discharge requirements may be modified, revoked and reissued, or terminated for cause. The filing of a request by the discharger for waste discharge requirement modification, revocation and reissuance, termination, or a notification of planned changes or anticipated noncompliance, does not stay any of the waste discharge requirements conditions.

8. Property Rights

The waste discharge requirements do not convey any property rights of any sort, or any exclusive privileges, nor does it authorize any injury to private property or any invasion of personal rights, nor any infringement of federal, state or local laws or regulations.

9. Enforcement

The California Water Code provides for civil liability and criminal penalties for violations or threatened violations of the waste discharge requirements including imposition of civil liability or referral to the Attorney General.

10. Availability

A copy of the waste discharge requirements shall kept and maintained by the discharger and be available at all times to operating personnel.

11. Severability

Provisions of the waste discharge requirements are severable. If any provision of the requirements is found invalid, the remainder of the requirements shall not be affected.

12. Public Access

General public access shall be effectively excluded from treatment and disposal facilities.

13. Transfers

Providing there is no material change in the operation of the facility, this Order may be transferred to a new owner or operation. The owner/operator must request the transfer in writing and receive written approval from the Regional Board Executive Officer.

14. Definitions

- a. "Surface waters" as used in this Order, include, but are not limited to, live streams, either perennial or ephemeral, which flow in natural or artificial water courses and natural lakes and artificial impoundments of waters. "Surface waters" does not include artificial water courses or impoundments used exclusively for wastewater disposal.
- b. "Ground waters" as used in this Order, include, but are not limited to, all subsurface waters being above atmospheric pressure and the capillary fringe of these waters.

15. Storm Protection

All facilities used for collection, transport, treatment, storage, or disposal of waste shall be adequately protected against overflow, washout, inundation, structural damage or a significant reduction in efficiency resulting from a storm or flood having a recurrence interval of once in 100 years.

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LAHONTAN REGION

MONITORING AND REPORTING PROGRAM NO. 95-21
WDID NO. 6A020013000

FOR

WOODFORDS INDIAN COLONY
WASTEWATER TREATMENT AND DISPOSAL FACILITY

Alpine County

I. MONITORING

A. Flow Monitoring

The Dischargers shall monitor the following:

1. The total volume, in million gallons, of wastewater flow measured quarterly, based on 100 percent of the domestic water consumption metered in the pumphouse.
2. The freeboard (distance from the top of the lowest part of the dike to the wastewater surface in the pond) measured each month in each surface impoundment. If a surface impoundment does not contain wastewater, indicate that it is empty.

B. Ground Water Monitoring

In accordance with Board Order 6-88-85, three ground water monitoring wells were constructed adjacent to the evaporation ponds.

1. Beginning March 15, 1995, quarterly grab samples of the top 5 feet of ground water shall be collected from each monitoring well and analyzed for the following water quality parameters:

<u>Parameter</u>	<u>Units</u>	<u>Frequency</u>
Nitrate	mg/l as N	Quarterly
Chloride	mg/l	Quarterly
Electrical Conductivity	umhos/cm	Quarterly
pH	pH units	Quarterly
Purgeable Halocarbons ¹	mg/l	Annually
Purgeable Aromatics ²	mg/l	Annually

¹ EPA method 601- Note that the Regional Board shall consider deleting this requirement if samples show no detection of purgeable halocarbons.

² EPA method 602 - Note that the Regional Board shall consider deleting this requirement if samples show no detection of purgeable aromatics.

2. The depth to ground water in each well shall be measured and recorded each quarter.

II. REPORTING

A. General Provisions

The Dischargers shall comply with the "General Provisions for Monitoring and Reporting," dated September 1, 1994, which is attached to and made part of this Monitoring and Reporting Program.

B. Submittal Periods

By no later than the 15th day of the month following each sampling period, the Dischargers shall submit a monitoring report including the preceding monitoring information to the Regional Board.

Ordered by:


HAROLD J. SINGER
EXECUTIVE OFFICER

Dated:

Feb 9, 1995

Attachment: General Provisions for Monitoring and Reporting

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LAHONTAN REGION

GENERAL PROVISIONS
FOR MONITORING AND REPORTING

1. **SAMPLING AND ANALYSIS**

- a. All analyses shall be performed in accordance with the current edition(s) of the following documents:
 - i. Standard Methods for the Examination of Water and Wastewater
 - ii. Methods for Chemical Analysis of Water and Wastes, EPA
- b. All analyses shall be performed in a laboratory certified to perform such analyses by the California State Department of Health Services or a laboratory approved by the Regional Board Executive Officer. Specific methods of analysis must be identified on each laboratory report.
- c. Any modifications to the above methods to eliminate known interferences shall be reported with the sample results. The methods used shall also be reported. If methods other than EPA-approved methods or Standard Methods are used, the exact methodology must be submitted for review and must be approved by the Regional Board Executive Officer prior to use.
- d. The dischargers shall establish chain-of-custody procedures to ensure that specific individuals are responsible for sample integrity from commencement of sample collection through delivery to an approved laboratory. Sample collection, storage, and analysis shall be conducted in accordance with an approved Sampling and Analysis Plan (SAP). The most recent version of the approved SAP shall be kept at the facility.
- e. The dischargers shall calibrate and perform maintenance procedures on all monitoring instruments and equipment to ensure accuracy of measurements, or shall insure that both activities will be conducted. The calibration of any wastewater flow measuring device shall be recorded and maintained in the permanent log book described in 2.b, below.
- f. A grab sample is defined as an individual sample collected in fewer than 15 minutes.
- g. A composite sample is defined as a combination of no fewer than eight individual samples obtained over the specified sampling period at equal intervals. The volume of each individual sample shall be proportional to the discharge flow rate at the time of sampling. The sampling period shall equal the discharge period, or 24 hours, whichever period is shorter.

2. OPERATIONAL REQUIREMENTS

a. Sample Results

Pursuant to California Water Code Section 13267(b), the dischargers shall maintain all sampling and analytical results including: strip charts; date, exact place, and time of sampling; date analyses were performed; sample collector's name; analyst's name; analytical techniques used; and results of all analyses. Such records shall be retained for a minimum of three years. This period of retention shall be extended during the course of any unresolved litigation regarding this discharge, or when requested by the Regional Board.

b. Operational Log

Pursuant to California Water Code Section 13267(b), an operation and maintenance log shall be maintained at the facility. All monitoring and reporting data shall be recorded in a permanent log book.

3. REPORTING

a. For every item where the requirements are not met, the dischargers shall submit a statement of the actions undertaken or proposed which will bring the discharge into full compliance with requirements at the earliest time, and shall submit a timetable for correction.

b. Pursuant to California Water Code Section 13267(b), all sampling and analytical results shall be made available to the Regional Board upon request. Results shall be retained for a minimum of three years. This period of retention shall be extended during the course of any unresolved litigation regarding this discharge, or when requested by the Regional Board.

c. The dischargers shall provide a brief summary of any operational problems and maintenance activities to the Board with each monitoring report. Any modifications or additions to, or any major maintenance conducted on, or any major problems occurring to the wastewater conveyance system, treatment facilities, or disposal facilities shall be included in this summary.

d. Monitoring reports shall be signed by:

i. In the case of a corporation, by a principal executive officer at least of the level of vice-president or his duly authorized representative, if such representative is responsible for the overall operation of the facility from which the discharge originates;

ii. In the case of a partnership, by a general partner;

iii. In the case of a sole proprietorship, by the proprietor; or

- iv. In the case of a municipal, state or other public facility, by either a principal executive officer, ranking elected official, or other duly authorized employee.
- e. Monitoring reports are to include the following:
 - i. Name and telephone number of individual who can answer questions about the report.
 - ii. The Monitoring and Reporting Program Number.
 - iii. WDID Number.
- f. Modifications

This Monitoring and Reporting Program may be modified at the discretion of the Regional Board Executive Officer.

4. NONCOMPLIANCE

Under Section 13268 of the Water Code, any person failing or refusing to furnish technical or monitoring reports, or falsifying any information provided therein, is guilty of a misdemeanor and may be liable civilly in an amount of up to one thousand dollars (\$1,000) for each day of violation.